

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	30-07-2026 15:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	30-07-2026 15:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	90 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम/Department Name	Na
संगठन का नाम/Organisation Name	Oil And Natural Gas Corporation Limited
कार्यालय का नाम/Office Name	C2 C3 Dahej Plant
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :devassy_josephp@ongc.co.in Buyer Email id: kapadia_mehul@ongc.co.in
कुल मात्रा/Total Quantity	50
वस्तु श्रेणी /Item Category	Solar street light
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Solar street light
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	12 Watt White-LED Based Solar Street Lighting System As Per MNRE Specification, 7 Watt White-LED Based Solar Street Lighting System As Per MNRE Specification, Tubular Street Light Poles, LED Luminaire For Road And Street Lights Conforming To IS 10322 (Part 5/Section 3) (V3) (Under BIS Scheme - II), Solar Aviation Light, Solar Torch Light, Portable OT Light (V2), High Mast Lighting Octagonal Tower With Solar Based LED Street Light (V2), Lighting Pole or Post and Hardware - Tubular Street Light Poles (V2), Hand Held Search Light
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- LED Luminaire For Road And Street Lights Conforming To IS 10322 (Part 5/Section 3) (V3) (Under BIS Scheme - II) 12 Watt White-LED Based Solar Street Lighting System As Per MNRE Specification 7 Watt White-LED Based Solar Street Lighting System As Per MNRE Specification
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC),Additional Doc 4 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ में नू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	5 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 10 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	Yes (Arbitration clause document) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 Arbitration should not be routinely included in contracts
सुलह खंड/Mediation Clause	Yes (Mediation clause document) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 mediation clause should not be routinely included in contracts and pre-litigation mediation can be taken up without any such clause also

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	33318

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	3.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	67

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने है। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

CM(F&A)

Pragati Bhawan, Oil and Natural Gas Corporation Limited, Makarpura Road, Vadodara - 390009
(Ongc)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई के लिए आरक्षित / Reserved for Make In India products

एमआईआई के लिए आरक्षित / Reserved for Make In India products	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15

सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25
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ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Bid reserved for Make In India products: : Procurement under this bid is reserved for purchase from Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. However, eligible micro and small enterprises will be allowed to participate. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020 . In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

2. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

Solar Street Light (50 pieces)

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रैता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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उपरोक्त मद के लिए इंस्टॉलेशन कमीशनिंग एंड टेस्टिंग (आईसीटी) का विवरण / Installation Commissioning and Testing (ICT) details for the above item:

% of Product Cost Payable on Product Delivery	70%
Min Cost Allocation for ICT as a % of product cost	1%
Number of days allowed for ICT after site readiness communication to seller	20 Days

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sajan Chacko	392130,C2C3 Plant Dahej, ONGC, Plot No.7/D , Dahej SEZ Ph-II, Taluka Vagra, District- Bharuch.	50	100

Buyer added Bid Specific Additional Scope of Work

क्र.सं./S.N o.	Document Title	Description	रिवर्स प्रभार के अनुसार जीएसटी/Applicable i.r.o. Items
1	Centralized Invoice Processing View	Centralized Invoice Processing	Solar Street Light(50)
2	Instructions for furnishing eBG View	Instructions for furnishing eBG	Solar Street Light(50)
3	Tech BEC Matrix View	Tech BEC Matrix	Solar Street Light(50)
4	SOW View	SOW	Solar Street Light(50)
5	Technical BEC View	Technical BEC	Solar Street Light(50)
6	Undertaking from manufacturer for local content addition View	Undertaking from manufacturer for local content addition	Solar Street Light(50)

क्र.सं./S.No.	Document Title	Description	रिवर्स प्रभार के अनुसार जीएसटी/Applicable i.r.o. Items
7	Undertaking on banning suspension View	Undertaking on banning suspension	Solar Street Light(50)
8	Instructions and proforma for insurance security bond View	Instructions and proforma for insurance security bond	Solar Street Light(50)
9	Other terms compliance matrix View	Other terms compliance matrix	Solar Street Light(50)

The uploaded document only contains Buyer specific Additional Scope of Work and / or Drawings for the bid items added with due approval of Buyer's competent authority. Buyer has certified that these additional scope and drawings are generalized and would not lead to any restrictive bidding.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Scope of Supply

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

3. Inspection

Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance:
Pre-dispatch Inspection at Seller Premises (applicable only if pre-dispatch inspection clause has been selected in ATC):

NA

Post Receipt Inspection at consignee site before acceptance of stores:
QAD

4. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

I. Dealing officer details are as under:

Name: Mehul R Kapadia

Designation: EE (SCM)

Email id: kapadia_mehul@ongc.co.in

Phone no.: 9428007263

II. Submission of invoices: Please note VIMS (Vendor Invoice management system)/Flipper has been rolled out in ONGC for processing of Invoices. VIMS is having following two input channels for submission of the invoices:

i) VIMS/Flipper Internet Portal: <https://vims.ongc.co.in/>

ii) E-MAIL channel: Through designated email ID (ap_invoices@ongc.co.in)

Supplier shall submit complete set of documents as per PO conditions through any of the above channels.

Note:

- a. Invoices submitted through VIMS internet portal and e-mail channel shall be digitally signed.
- b. Please go through the help documents/presentations/videos available at <https://vims.ongc.co.in/> for complete details.
- c. Even after submission of complete invoice along with all relevant documents as per PO conditions & VIMS guidelines, if Vendors do not receive due payment within due date and they also do not receive any intimation regarding discrepancy in invoice, vendor may raise the issue in the dedicated Email ID ; vendor_wonbasin@ongc.co.in with copy to (1) CCF@ongc.co.in and (2) chief_mm@ongc.co.in giving complete details of IMS / VIM DP no., PO number and details of concerned identified user from ONGC.
- d. Supplier in their own interest are advised to timely provide all requisite documents to enable ONGC for timely payment.
- e. Invoices submitted for payment should be e-invoice in terms of GST Law or the digitally signed invoice only. No physical invoice shall be accepted for payment.
- f. Physical invoices (wherever allowed) would be accepted through courier / post at the following address only:

Oil and Natural Gas Corporation Limited (ONGC),
A-26, Mezzanine Floor,
IBM Tower, Rani Ramgarh Road,
Block-A, Industrial Area,
Sector 62, NOIDA,
Uttar Pradesh – 201309

III. Bidder to provide ONGC vendor code if available.

IV. Validity of EMD shall be 45 days beyond the bid validity i.e; 135 days in line with clause (n) in point (xiii) of para 4.0 of GeM- GTC.

V. EMD / Bid Security and SD/performance bank guarantee can only be submitted in either of below three forms:

A) Electronic BG (e-BG) as per format available on GeM portal on following bank details:

Beneficiary Account Name: Oil and Natural Gas Corporation Limited

Bank Name: State bank of India

Branch: CAG Delhi

Branch: Code: 17313

Bank Account No: 42559953079

IFSC Code: SBIN0017313

SWIFT Code: SBININBB824

Account Type: CC

Note 1: Against submission of EMD: Bidder has to upload the soft copy of Electronic BG (e-BG) along with bid.

While submitting tender with e-BG towards bid security/EMD, the bidder must ensure that the e-BG is executed on the NeSL portal before the stipulated tender closing deadline. Any e-BG executed on the NeSL portal after the tender closing date and time shall be treated as late submission, and such bids shall be liable for rejection.

Note 2: Against submission of security deposit: Bidder has to upload the soft copy of Electronic BG (e-BG) in place of PBG within 30 days of award of contract.

Note 3: PBG/Insurance security bond: The expiry date for PBG/Insurance security bond shall be **67 months** from the date of GeM contract. **Additional time period of one month for claim should also be provided.**

Note 4 (I): Bidder can submit the EMD/Bid Security in the form of SFMS based BG.

However, whenever a bidder submits SFMS BG, the bidder will mandatorily be required to submit letter from issuing bank that it is unable to issue NeSL based e-BG as on date. Such letter should accompany the SFMS Bank Guarantee (SFMS-BG).

Bidder shall get SFMS BG issued from SFMS enabled Bank as allowed by ONGC in tender conditions. Bank shall issue the Bank Guarantee through SFMS system (**Account details to be used for this purpose: Beneficiary Account Name: Oil and Natural Gas Corporation Limited, Bank Name: State Bank of India, Bank Account No: 10148485211, IFSC Code: SBIN0002676**) and send SFMS message to ONGC's Bank (Virtual IFSC Code "SBIN000 ONGC" of SBI, exclusively created for SFMS message purpose, to be used) confirming the authenticity of Bank Guarantee. Bidder will be required to submit SFMS BG towards Bid Security along with SFMS delivery report /message copy which has been transmitted by BG issuing

bank through SFMS system to ONGC's bank (at aforesaid virtual IFSC Code). The SFMS issuance message (MT 760COV) and subsequent amendments (MT 767COV) must be capable of system verification through API integration.

The SFMS BG will have to be given on non-judicial stamp paper / with franking receipt e-stamping as per stamp duty applicable at the place from where the bid has emanated. The non-judicial stamp paper / franking receipt e-stamping should be either in the name of the issuing bank or the bidder.

The original SFMS BG in physical form towards Bid Security (along with SFMS delivery report / message copy which has been transmitted by issuing bank through SFMS system to beneficiary's i.e. ONGC's bank) should reach to the Office of Supply Chain Management Section, WON Basin, Shed No. 18, Regional stores, ONGC, Makarpura Road, Vadodara-390009, Gujarat, India within 5 working days of bid opening as per GeM GTC.

SFMS BG will not be acceptable unless details of the same is transmitted to the ONGC's Bank (to IFSC Code "SBIN000ONGC") through SFMS platform. Its bidder's responsibility to ensure that BG issuing bank sends the BG advice correctly in the form of message format 760COV via SFMS (Structured Financial Messaging System) as provided by RBI while capturing all requisite fields including Beneficiary Account Name, Bank Name, Bank Account Number, IFSC Code etc.

In case of any error by the applicant (bidder) or BG issuing bank while capturing the requisite field details/format or non-receipt of confirmation of BG through SFMS 760COV message format, the bid shall be liable for rejection and bidder shall be responsible for the same.

For any amendment of SFMS BG, message 767COV through SFMS should be used (IFSC Code "SBIN000ONGC").

Beneficiary Account details for encashment of SFMS BG:

- i) Beneficiary Account Name: Oil and Natural Gas Corporation Limited
- ii) Bank Name: State Bank of India
- iii) Bank Account No.: 10148485211
- iv) IFSC Code: SBIN0002676

Dedicated virtual IFSC Code "SBIN000ONGC" of SBI should to be used for messaging BG advice in the form of message format 760 COV via SFMS.

Note 4 (II): Supplier can submit the SD/Performance Security in the form of SFMS based BG.

However, whenever a supplier submits SFMS BG, the supplier will mandatorily be required to submit letter from issuing bank that it is unable to issue NeSL based e-BG as on date. Such letter should accompany the SFMS BG.

Supplier shall get SFMS Bank Guarantee issued from SFMS enabled Bank as allowed by ONGC in tender conditions **(Account details to be used for this purpose: Beneficiary Account Name: Oil and Natural Gas Corporation Limited, Bank Name: State Bank of India, Bank Account No: 10148485211, IFSC Code: SBIN0002676)**. Bank shall issue the Bank Guarantee through SFMS system and send SFMS message to ONGC's Bank (Virtual IFSC Code "SBIN000ONGC" of SBI, exclusively created for SFMS message purpose, to be used) confirming the authenticity of Bank Guarantee. Supplier will be required to submit SFMS BG towards Performance Security along with SFMS delivery report / message copy which has been transmitted by BG issuing bank through SFMS system to ONGC's bank.

The SFMS BG will have to be given on non-judicial stamp paper / with franking receipt e-stamping as per stamp duty applicable at the place from where the bid has emanated. The non-judicial stamp paper / franking receipt e-stamping should be either in the name of the issuing bank or the supplier.

The original SFMS BG in physical form towards Performance Security (along with SFMS delivery report /message copy which has been transmitted by issuing bank through SFMS system to beneficiary's i.e. ONGC's bank) should reach to the Office of Supply Chain Management Section, WON Basin, Shed No. 18, Regional stores, ONGC, Makarpura Road, Vadodara-390009, Gujarat, India within 30 days from date of GeM contract.

SFMS BG will not be acceptable unless details of the same is transmitted to the ONGC's Bank (to IFSC Code "SBIN000ONGC") through SFMS platform. Its supplier's responsibility to ensure that BG issuing bank sends the BG advice correctly in the form of message format 760COV via SFMS (Structured Financial Messaging System) as provided by RBI while capturing all requisite fields including Beneficiary Account Name, Bank Name, Bank Account Number, IFSC Code etc.

In case of any error by the applicant (supplier) or BG issuing bank while capturing the requisite field details/format or non-receipt of confirmation of BG through SFMS 760COV message format, supplier shall be responsible for the non-acceptance of the same.

For any amendment of SFMS BG, message 767COV through SFMS should be used (IFSC Code "SBIN000ONGC").

Beneficiary Account details for encashment of SFMS BG:

- i) Beneficiary Account Name: Oil and Natural Gas Corporation Limited
- ii) Bank Name: State Bank of India
- iii) Bank Account No.: 10148485211
- iv) IFSC Code: SBIN0002676

Dedicated virtual IFSC Code "SBIN000ONGC" of SBI should to be used for messaging BG advice in the form of message format 760 COV via SFMS.

B) Online transfer on following bank details:

Beneficiary Account Name: Oil and Natural Gas Corporation Limited

Account No.: 10148485211

IFSC Code: SBIN0002676

Bank Name: State Bank of India

Branch address: Shopping Complex, ONGC Colony, Makarpura Road, Vadodara- 390009(Gujarat).

Note 1: Against submission of EMD: Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of online transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

Note 2: Against submission of security deposit: Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PB

G within 30 days of award of contract.

C) Unconditional Irrevocable Insurance Surety Bond:

The Insurance Surety Bond by Indian bidder will have to be given on non-judicial stamp paper / franking receipt as per stamp duty applicable at the place where Insurer is issuing the Insurance Surety Bond. The non-judicial stamp paper / franking receipt should be either / in the name of the insurance company (insurer) or the bidder.

The bidders will give Insurance surety Bond from an Indian Insurance Company (Insurer) registered with Insurance Regulatory and Development Authority of India (IRDAI).

Format and instructions are attached in the bid.

Note 1: Against submission of EMD: Bidders will be required to provide the details of unconditional Insurance Surety Bond such as Number, Date, Name of Insurance company (Insurer), Expiry date, Claim period and amount in their bid. The Insurance Surety Bond in PDF format should also be submitted by bidder in its e-bid in the e-bidding portal. Original Physical copy should be submitted at Office of HPO (SCM), WON Basin, Shed 18, Regional stores, ONGC, Makarpura road, Vadodara-390009 as per GeM GTC.

Note 2: Against submission of security deposit: Successful Bidder to indicate Number, Date, Name of Insurance company (Insurer), Expiry date, Claim period and amount in their SD. The Insurance Surety Bond in PDF format should also be submitted by bidder in the portal. Original Physical copy should be submitted at Office of HPO (SCM), WON Basin, Shed 18, Regional stores, ONGC, Makarpura road, Vadodara-390009 within 30 days of award of contract. Bidder has to upload scanned copy in place of PBG.

Note 3: PBG/Insurance security bond: The expiry date for PBG/Insurance security bond shall be **67 months** from the date of GeM contract. **Additional time period of one month for claim should also be provided.**

VI. LD clause:

LD shall be applicable as per GeM GTC:

If the Seller/Service Provider fails to deliver any or all of the Goods/Services within the original/fixed delivery period(s) specified in the contract, the Buyer will be entitled to deduct/recover the Liquidated Damages for the delay, unless covered under Force Majeure conditions aforesaid, @ 0.5% of the contract value of delayed quantity per week or part of the week of delayed period, until actual delivery or performance, as pre-estimated damages not exceeding 5% of the total contract value without any controversy/dispute of any sort whatsoever. However, in case of inordinate delay maximum deduction shall be 10% of the total contract value.

Note: Inexcusable delays of more than one-fourth (25%) of the completion period specified in the contract shall be treated as inordinate delay(s).

VII. Timeline for submission of PBG / Security Deposit: The time for submission of PBG / Security Deposit is 30 days from date of GeM contract without any penalty. In case PBG / Security Deposit is not submitted within 30 days from the date of GeM Contract, a sum equivalent to 1.5% (one and half percent) of the amount of PBG / Security Deposit per month for such delay or part thereof shall be recovered from the first Bill/invoice (& any remaining amount from subsequent invoice) submitted by the supplier/contractor.

VIII. Completion period: Entire work including supply, installation and commissioning to be completed within 120 days from the date of GeM contract. This shall supersede completion period mentioned elsewhere in the bid document.

IX. Payment terms: 70% payment of the contract value shall be released after successful delivery and successful inspection (issuance of QCC by ONGC) & remaining 30% shall be released after I&C. This shall supersede payment terms mentioned elsewhere in the bid document.

X. If single Indian bidder situation arises in tender and the offered goods is of foreign origin, then ONGC may ask the bidder to provide the details of price being charged by foreign manufacturer either on Ex-works or FOB or CFR basis, as the case may be.

After placement of order, bidder/supplier shall be required to submit copy of Invoice (Customs Invoice) of the foreign manufacturer raised on the Indian supplier on Ex-works / FOB / CFR basis, as the case may be, at the time of shipment or alongwith documents submitted for payment.

The invoice prices of foreign supplier shall be checked by concerned payment authority before making payment.

XI. Manufacturer Authorization: Wherever Authorised Distributors are submitting the bid, **tender specific** manufacturers authorisation form (MAF)/Certificate for offered product with OEM details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid. The submitted certificate shall be valid for entire execution period of contract, in case of a ward.

XII. Either the manufacturer or their authorised distributor/dealer etc. can bid in a tender, but not both. Further, in cases where authorised distributor/dealer etc. participate in a tender on behalf of one manufacturer, they are not allowed to quote on behalf of another manufacturer along with the first manufacturer for the same item. Non-compliance of this shall lead to the rejection of bid(s).

XIII. Purchase Preference to Micro and Small Enterprises:

(I) Purchase preference will be given to MSEs having valid Udyam Registration and whose credentials

als are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1 + 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25 % (selected by Buyer) percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

A sub-targets of 4% within 25% has been earmarked for procurement from MSEs owned by the SC or ST entrepreneurs and 3% from within 25% has been earmarked for supply from the MSEs owned by Women entrepreneurs. While allotting, first preference should be given to MSEs owned by SC/ST and Women for 4% and 3% respectively. Provided that, in event of failure of such MSEs to participate in tender process or meet tender requirement and L-1 price, 4% /3% sub-target for procurement earmarked for MSEs owned by SC or ST entrepreneurs and women entrepreneurs respectively shall be met from other MSEs.

Example for allocation of quantity to SC/ST/woman MSEs:

Say 8 MSEs fall within price band of L1 + 15% with only 1 SC/ST MSE and 1 Women MSE and all agreeing to match L1 rates, SC/ST MSE to be awarded 4 % of quantity and Women owned MSE to be awarded 3% of quantity. Balance 18% quantity to be split equally among other 06 MSEs.

In tenders where only one women SC/ST entrepreneur qualifies for purchase preference, she may be allocated quantity for both SC/ST as well as Women i.e. minimum 7 %.

Allocation of 4% quantity for SC/ST MSEs & 3% for Women owned MSEs are the minimum allocation. In case such bidders get higher allocation in normal course as being a MSE bidder, the higher allocation shall be provided to such bidders.

(II) In the opinion of ONGC, if tendered goods cannot be divided in the ratio of 75% / 25%, then ONGC reserve the right to award on lowest eligible MSEs for quantity not less than 25% quantity, as may be dividable.

For example:

In case tendered quantity is between 1 to 3 (not divisible in the ratio of 75:25), MSE shall get order for 1 no. only and the rest will go to L-1 (non-MSE bidder). Same analogy shall be applied for quantities which are not dividable in the exact ratio of 75:25.

(III) In case of more than one such MSE qualifying for 15% purchase preference, then the eligible MSE(s) shall be allowed to share portion of supply in the following manner:

(a) In case of more than one such MSE bidder qualifying for 15% purchase preference, the 25% supply shall be shared equally amongst such MSEs. (Eligible MSEs owned by SC/ST and Women should be allotted minimum 4% and 3% respectively).

(b) In case 25% quantity cannot be further divided, the following order of preference for Purchase Preference among MSEs shall apply, subjected to fulfillment of all other provision under the MSE Order:

First Preference: MSE -SC/ST & Women

Second Preference: MSE-SC/ST

Third Preference: MSE-Women

Fourth Preference: Other MSEs

Note: In case of more than one eligible bidder in any of the categories mentioned above, lowest among those bidders will be eligible for purchase preference.

XIV. Bidder to submit GSTIN certificate along with their Bid.

XV. Security deposit:

Value = 3% of the contract value

Validity = 67 months

Claim period = 01 month additional

XVI. EMD exempted bidders to submit a Bid securing declaration (BSD) accepting that if they withdraw or modify their Bids during the period of validity or if they are awarded the contract and they fail to submit performance security, or to sign the contract, before the deadline defined in the tender documents, it shall be considered as a violation of Code on Integrity and they shall be suspended for the time period specified in the BSD from being eligible to submit Bids/Proposals for contracts.

Bid Securing Declaration:

"We (Name of the bidder) hereby declare and accept that if we withdraw or modify our Bid during the period of validity, or if we are awarded the contract and we fail to sign the contract, or fail to submit the performance security before the deadline defined in the NIT, we will be banned for a period of two years. We understand that no further correspondence in this regard shall be accepted by ONGC."

XVII. For the purpose of calculation of local content, value addition through services such as transportation, insurance, installation, commissioning, training, after sales service support like AMC/CMC SH ALL NOT BE CONSIDERED.

XVIII. W.r.t. clause V(A), in case bidder is submitting Physical SFMS based BG against EMD, then the same should be received at the Office of Head Procurement Officer, Shed 18, Regional Stores, ONGC, Makarpura Road, Vadodara, Gujarat -390009 in 05 working days from the date of TBO.

5. Warranty

Warranty period of the supplied products shall be 5 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at

consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working

Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---